

STATE OF MINNESOTA
COUNTY OF WADENA — SEVENTH JUDICIAL DISTRICT

In the Matter of the Dependency Proceeding Concerning B.J.C. and K.C.C.

Court File No. 80-JV-26-492

Case Type: Child in Need of Protection or Services (CHIPS)

**SUPPLEMENTAL MOTION TO DISMISS OR, IN THE ALTERNATIVE,
FOR STAY PENDING COMPLIANCE WITH MINNESOTA CHIPS LAW
WITH REQUEST FOR WRITTEN FINDINGS OF FACT AND CONCLUSIONS OF
LAW**

PRO SE — JAMES CHAPMAN, FATHER

STATEMENT INCORPORATING PRIOR MOTION BY REFERENCE

I, James Chapman, father of B.J.C. and K.C.C., submit this Supplemental Motion to Dismiss or, in the Alternative, for Stay Pending Compliance with Minnesota CHIPS Law (“Supplemental Motion”). This Supplemental Motion does not replace my previously filed Motion to Dismiss or, in the Alternative, for Stay Pending Proper Service, filed in this matter and grounded in the Due Process Clause of the Fourteenth Amendment (the “Prior Motion”). I incorporate the Prior Motion, and every factual statement, exhibit, and authority contained in it, by reference as though fully set forth herein. This Supplemental Motion presents independent, freestanding grounds for relief arising under Minnesota statutory and procedural law that do not depend on resolution of the federal constitutional questions already before the Court.

PRELIMINARY STATEMENT

This Court is presented with two independent paths to the same relief. The Prior Motion preserves and presents the federal constitutional issues arising under the Due Process Clause.

This Supplemental Motion raises independent issues arising under Minnesota Statutes chapter 260C, Minnesota Statutes section 260.012, and the Minnesota Rules of Juvenile Protection Procedure. The Court may grant dismissal, vacatur of the emergency findings, or alternative relief on the state-law grounds set out below without reaching every federal constitutional question presented in the Prior Motion. Nothing in this Supplemental Motion waives, narrows, or supersedes any constitutional issue already raised. All federal constitutional issues remain preserved for this Court's consideration and, if necessary, for appellate review.

INTRODUCTION

This Court possesses both a constitutional and a statutory obligation to examine the basis for the Department's exercise of emergency authority over my children. Even if every disputed factual issue in this matter were resolved in the Department's favor, the Court would still be required to determine, as a matter of Minnesota law, whether the statutory prerequisites for emergency removal, notice, and continued out-of-home placement were satisfied. They were not. The undisputed sequence of the Department's own conduct — set out below and in the Prior Motion — does not satisfy the standard Minnesota law imposes on the responsible social services agency before a child may be removed from a fit, non-offending parent on an emergency basis.

I. STANDARD OF REVIEW

Emergency removal of a child from the custody of a parent is an extraordinary exercise of state authority, not a routine or preferred first step. Minnesota law authorizes a peace officer to take a child into custody without a court order only where the child is “found in surroundings or conditions which endanger the child's health or welfare or which such peace officer reasonably believes will endanger the child's health or welfare.” Minn. Stat. § 260C.175, subd. 1, cl. (2)(ii).

That authority is narrowly drawn, and the responsible social services agency bears the burden of establishing that it was properly invoked.

Minnesota law does not permit a court to ratify emergency removal, or continued out-of-home placement following removal, on the basis of unsupported agency assertions. Before a child may be placed in or continued in foster care, the court “shall also make a determination, consistent with section 260.012 as to whether reasonable efforts were made to prevent placement or whether reasonable efforts to prevent placement are not required,” and “may not order or continue the foster care placement of the child unless the court makes explicit, individualized findings that continued custody of the child by the parent or guardian would be contrary to the welfare of the child and that placement is in the best interest of the child.” Minn. Stat. § 260C.178, subd. 1(e)–(f). The paramount consideration throughout is “the health, safety, and best interests of the child,” Minn. Stat. § 260C.001, subd. 2(a), but that consideration is not a substitute for the specific statutory findings the law requires — it is the standard against which those findings must be measured.

Because a fundamental parental liberty interest is at stake, strict adherence to these statutory and procedural safeguards is required. The Court independently reviews whether the Department complied with them; the Department's own characterization of its actions as reasonable, cautious, or protective is not itself evidence of compliance.

II. STATEMENT OF UNDISPUTED CHRONOLOGY

The chronology below is set out in full, with supporting detail, in the Prior Motion and is incorporated here without repetition of every particular. The material sequence, undisputed on this record, is as follows:

Friday: My wife was arrested for domestic assault. I was identified by law enforcement as the non-offending parent and victim.

The children remained in my sole care, safely, from Friday through Monday at noon — approximately 72 hours — without any action by the Department.

Monday at noon: The Department and a police officer arrived and demanded a urinalysis under explicit threat that my children would be removed if I refused.

I immediately and visibly objected to contamination in the specimen; I never signed or certified the sample.

The Department dispatched an officer to verify whether the Domestic No Contact Order (“DNCO”) prevented my wife from being with the children if I left. The officer confirmed it did not.

I was instructed to leave, and was told the children would remain in the home with their mother.

The children remained home after I left, under no restriction.

After I left, the Department filed an emergency hold citing the contested urinalysis — evidence pertaining to a parent who was, by that point, no longer in the home.

I was not served with the petition or supporting documents before the emergency hold was filed or before the 72-hour hearing.

I received no notice of the 72-hour hearing and did not participate in it. The hearing was conducted, and concluded, without me.

Every fact above is drawn from the Department's own sequence of actions, independent of any credibility determination or disputed testimony.

III. MINNESOTA'S STATUTORY FRAMEWORK GOVERNING EMERGENCY REMOVAL

A. Purpose of Emergency Authority

Emergency removal authority exists to protect a child from present, objective danger that cannot safely wait for ordinary judicial process — not to serve as a substitute for the ordinary petition, summons, and hearing process Minnesota law otherwise requires. The overriding statutory purpose of chapter 260C is to timely provide a safe and permanent home for the child while ensuring that reasonable efforts are made, when required, to prevent unnecessary removal and to reunify the family. Minn. Stat. § 260C.001, subd. 2.

B. Statutory Requirements

Minnesota law conditions emergency removal, and any continued placement following removal, on the following requirements:

1. Objective facts.

A peace officer may take a child into custody without a warrant only where the child is found in surroundings or conditions that objectively endanger the child's health or welfare, or that the officer reasonably believes will do so. Minn. Stat. § 260C.175, subd. 1, cl. (2)(ii). The standard is objective, not merely a generalized concern.

2. Imminent danger.

Continued removal requires a present, individualized finding that continued custody by the parent would be contrary to the child's welfare — not a historical or speculative concern. Minn. Stat. § 260C.178, subd. 1(f).

3. Necessity and no less restrictive alternative.

Removal is not permitted where less restrictive means — including leaving the child with a non-offending parent, or a safety plan — would adequately protect the child. This is embedded directly in the reasonable-efforts requirement discussed in Part V below: the agency must show either that it provided services or efforts that proved insufficient, or that no services or efforts available at the time could have allowed the child to safely remain in the home. Minn. Stat. § 260.012(d).

4. Burden of proof.

The responsible social services agency bears the burden of demonstrating that reasonable efforts were made, or that they were not required, at every stage of the proceeding at which the issue arises. Minn. Stat. § 260.012(a).

5. Required judicial findings.

Before a child may be placed in or continued in foster care, the court must make explicit, individualized findings — not boilerplate recitations — that continued parental custody would be contrary to the child's welfare and that placement is in the child's best interest, together with a determination as to reasonable efforts. Minn. Stat. § 260C.178, subd. 1(e)–(f).

IV. THE DEPARTMENT FAILED TO MEET THE STATUTORY EMERGENCY STANDARD

A. No Objective Emergency Existed at the Time of the Hold

At the moment the Department filed its emergency hold, I — the person whose urinalysis the Department relies upon — had already left the home at the Department's own direction. The children were with their mother, in the home, under no restriction the Department had identified as necessary. There was no objective condition in the home at the time of filing that satisfied the standard of Minn. Stat. § 260C.175, subd. 1, cl. (2)(ii).

B. The Department's Delay Is Inconsistent With an Emergency

The Department took no action for approximately 72 hours while I was the children's sole caregiver. A condition that can wait three days for the Department to act is not, by definition, the kind of present, objective danger that Minnesota's emergency-removal statute is designed to address.

C. The Children Remained Home After I Left

The Department verified the scope of the DNCO for the specific purpose of confirming that the children could lawfully remain in the home with their mother after I left. That verification is inconsistent with a belief that the home itself was unsafe.

D. The Department Removed the Non-Offending Parent, Not the Children, From the Home

The actual change in the household's composition prior to the hold was my departure — not any change in the children's circumstances. The Department's asserted danger was tied to me personally, through the contested urinalysis; it was not tied to any condition of the home itself.

E. The Emergency Was Invoked Only After I Complied With the Department's Instruction

The hold was filed after, and only after, I complied with the Department's direction to leave. The timing is not incidental. It is the central fact this Court must weigh in determining whether an objective emergency existed at the moment the Department acted, as Minnesota law requires.

F. Agency Conduct Contradicts Its Asserted Necessity

An agency that believed an emergency existed in the home would not investigate whether the children could safely remain there without restriction. The Department's own conduct — verifying the DNCO, representing that the children would stay home, and only later filing the hold — is direct evidence that its later assertion of imminent danger is not supported by its contemporaneous actions.

V. THE DEPARTMENT FAILED TO SATISFY MINNESOTA'S REASONABLE-EFFORTS REQUIREMENT

Reasonable efforts are a separate statutory requirement from the emergency-removal standard itself, and satisfying one does not satisfy the other. Under Minnesota Statutes section 260.012, once a child is under the court's jurisdiction, the court must ensure that the responsible social services agency has made reasonable efforts — including consideration of an individualized safety plan — to prevent placement and to eliminate the need for removal. Minn. Stat. § 260.012(a), (d). The agency bears the burden of demonstrating either that it provided services or efforts that proved insufficient to permit the child to safely remain home, or that no such services or efforts were available under the particular circumstances. Minn. Stat. § 260.012(d)(1)–(2).

This Court should require the Department to answer, on the record, each of the following questions:

Were reasonable efforts to prevent placement made in this case?

If so, what were they, and were they documented as required?

If not, has the Department demonstrated that no efforts or services available at the time could have allowed the children to safely remain in my care — particularly given that I am the non-offending parent?

Was a safety plan considered or offered before removal was pursued, as contemplated by Minn. Stat. § 260.012(d)(1)?

The record as it presently stands does not show that any such safety plan was offered to the non-offending parent before the Department proceeded to emergency removal. That omission is itself a statutory deficiency independent of the constitutional notice and process issues raised in the Prior Motion.

VI. THE STATE CANNOT RELY ON AN EMERGENCY OF ITS OWN MAKING

A government agency cannot create the very circumstances it later relies upon to justify emergency action. The chronology here follows a single, traceable line: the Department obtained a disputed urinalysis under threat; it then verified that the children could remain home without me; it represented that arrangement to me; I relied on that representation and left; and only after I left — and only because I left — did the Department file an emergency hold citing evidence tied to my presence in a home I had already left at the Department's own direction.

The Department's own conduct, examined in sequence, is the most reliable evidence of what it actually understood the risk to be at each step. A chronology in which the agency's investigative steps are inconsistent with its later legal position is a chronology this Court should examine with particular care before crediting that later position. This is not a request that the Court find bad faith. It is a request that the Court compare the Department's contemporaneous conduct against its subsequent justification, and weigh the inconsistency accordingly.

VII. THE DEPARTMENT'S FAILURE TO PROVIDE NOTICE AND SERVICE VIOLATED MINNESOTA LAW AND COURT RULE

Minnesota law and court rule impose specific, independent notice and service obligations on the Department, separate from the federal due process requirements addressed in the Prior Motion.

Service. The Minnesota Rules of Juvenile Protection Procedure require that, absent a court order authorizing service by publication, “the summons and petition shall be personally served upon the child's parents or legal guardian.” Minn. R. Juv. Prot. P. 44.02, subd. (b)(1). Minnesota Statutes section 260C.151 and section 260C.152 likewise govern the summons and service required in these proceedings. As of the filing of this Supplemental Motion, I have not been personally served with the petition or supporting documents in this matter.

Notice of the emergency hearing. Where a child is taken into custody under section 260C.175, the court is required to hold a hearing within 72 hours, excluding weekends and holidays, to determine whether the child should continue in custody. Minn. Stat. § 260C.178, subd. 1(a). That hearing is the mechanism by which Minnesota law tests the Department's emergency action — but it serves that function only if the parent whose rights are at stake is notified and able to participate. I was not.

Opportunity to participate. Because the Department's own instruction to leave the home caused the condition — my lack of a fixed address — that it then used as a practical obstacle to locating and serving me, the Department cannot treat that obstacle as an excuse for proceeding without me. A responsible social services agency that creates the very condition that frustrates service cannot rely on that condition to justify an ex parte proceeding.

Access to records. I have not been provided with the petition, the affidavits, the laboratory records for the disputed urinalysis, or the agency's case notes. Meaningful participation in any hearing on this petition, including the admit/deny hearing, is not possible without access to the materials the Department relies upon.

VIII. PROCEDURAL IRREGULARITIES INDEPENDENTLY REQUIRE RELIEF

Several procedural irregularities in the record, each independently significant, further support the relief requested:

Identification errors. The petition identifies my son as “Brian James Chapman Jr.,” a designation that does not exist, and lists a date of birth for me that is not mine — it is my wife's. These are not trivial clerical slips in a proceeding of this consequence; they bear on the overall reliability of the Department's record-keeping.

Urinalysis and chain-of-custody integrity. I objected on the spot to visible contamination in the specimen container, in the presence of the collecting officer, and never signed or certified the sample. The Department has not produced chain-of-custody documentation establishing the integrity of that sample.

Body-worn camera and dispatch records. The collecting officer's body-worn camera was recording during the urinalysis, my objection, the officer's acknowledgment of the contamination, and the Department's representation that the children would remain home. I have requested, and again request, preservation of this footage along with all squad and dash-camera video and dispatch logs.

Internal communications. Agency notes, emails, and text messages bearing on the decision to verify the DNCO, to instruct me to leave, and to subsequently file the emergency hold are

directly relevant to whether the Department's sequence of conduct reflects a genuine, contemporaneous safety assessment or a decision made for other reasons and later justified after the fact.

IX. CUMULATIVE ERROR

Each issue identified above reinforces the others; none should be evaluated in isolation. The absence of an objective emergency at the time of filing, the absence of any documented reasonable efforts or safety plan, the absence of personal service, the absence of notice of the 72-hour hearing, and the identification and evidentiary irregularities in the record together describe a single chronology moving in one direction. The Court should evaluate the totality of this record, not each defect standing alone, in determining whether the statutory prerequisites for emergency removal and continued placement have been satisfied.

X. ANTICIPATED RESPONSES AND REBUTTALS

The Department may offer several responses to this Supplemental Motion. Each is addressed below.

1. Response: “The Department acted cautiously.”

Rebuttal: Caution is not a substitute for the specific statutory findings Minn. Stat. § 260C.178, subd. 1(e)–(f) requires. An agency may act cautiously and still fail to satisfy the objective standard the statute demands.

2. Response: “The Department exercised professional judgment.”

Rebuttal: Professional judgment remains reviewable by this Court under Minn. Stat. § 260.012(a) and § 260C.178, subd. 1(e). If professional judgment alone were sufficient, the statutory findings requirement would be surplusage.

3. Response: “The 72-hour hearing cured any defect.”

Rebuttal: A hearing conducted without notice to the affected parent cannot retroactively create statutory authority that did not exist when the hold was filed, and cannot substitute for the personal service Minn. R. Juv. Prot. P. 44.02 requires going forward.

4. Response: “Any service problem was harmless.”

Rebuttal: The absence of service prevented me from attending the one hearing designed to test whether continued removal was justified under Minn. Stat. § 260C.178. Loss of that opportunity to participate is the prejudice; it is not a technicality.

5. Response: “Dismissal is too drastic a remedy.”

Rebuttal: This Supplemental Motion requests dismissal as primary relief, but expressly offers alternative relief — a stay, vacatur of the emergency findings, and required written findings — the Court may order instead.

6. Response: “These are factual disputes unsuited to a motion.”

Rebuttal: The material facts — the Department's own sequence of actions, the timing of the hold relative to my departure, and the absence of service — are drawn from the Department's own record. Whether that undisputed sequence satisfies Minn. Stat. § 260C.175, § 260C.178, and § 260.012 is a legal question properly resolved on this motion.

7. Response: “The agency is not required to make reasonable efforts here.”

Rebuttal: The exceptions to the reasonable-efforts requirement in Minn. Stat. § 260.012(a) are narrow and require a specific prima facie showing — egregious harm, prior involuntary termination, abandonment, and similar circumstances. None has been alleged here. The Department bears the burden of establishing any such exception; it is not presumed.

8. Response: “The Court should defer to the agency's safety assessment.”

Rebuttal: Deference to a factual determination supported by evidence is not the same as excusing the agency from the specific findings the statute requires, or from the burden of proof the statute assigns to the agency rather than the parent.

9. Response: “The Department acted in good faith.”

Rebuttal: This motion does not require a finding regarding the Department's subjective intent. Even assuming complete good faith, the sequence of events described above may still fail to satisfy the objective statutory requirements governing emergency removal, reasonable efforts, and notice, which do not turn on intent.

10. Response: “This motion duplicates the Prior Motion.”

Rebuttal: This Supplemental Motion is expressly complementary to, not duplicative of, the Prior Motion. It raises independent state statutory and procedural grounds that this Court can resolve without reaching the federal constitutional questions, while those questions remain fully preserved.

XI. REQUESTED FINDINGS

I respectfully request that the Court make specific, individualized written findings addressing each of the following:

Whether an objective emergency, within the meaning of Minn. Stat. § 260C.175, subd. 1, cl. (2)(ii), existed at the moment the emergency hold was filed.

Whether the objective facts before the Department at that moment — as opposed to facts pertaining to a parent who had already left the home — supported a finding of imminent danger to the children.

Whether the statutory prerequisites of Minn. Stat. § 260C.178, subd. 1(e)–(f) were met, including the required contrary-to-welfare and best-interest findings.

Whether reasonable efforts to prevent placement occurred, as required by Minn. Stat. § 260.012, including whether a safety plan was considered or offered before removal was pursued.

Whether the Department's emergency findings remain supported once the full chronology — including the DNCO verification and the timing of the hold relative to my departure — is considered.

Whether notice complied with Minn. Stat. § 260C.151 and § 260C.178, subd. 1(a).

Whether service complied with Minn. R. Juv. Prot. P. 44.02.

Whether continued removal is justified on the present record, consistent with Minn. Stat. § 260C.178, subd. 1(f).

Whether all identified evidence — including body-worn camera footage, dispatch logs, laboratory records, and internal communications — should be ordered preserved.

Whether the Department complied with the procedural requirements of the Minnesota Rules of Juvenile Protection Procedure applicable to this matter.

A ruling on this Supplemental Motion that does not address these questions leaves unresolved the very statutory prerequisites Minnesota law places on the Department before it may exercise emergency authority over a fit, non-offending parent's children.

XII. RELIEF REQUESTED

A. Primary Relief — Dismissal

I move to dismiss this petition. The record does not establish that an objective emergency, within the meaning of Minnesota's emergency-removal statute, existed at the time the hold was filed; it does not establish that reasonable efforts to prevent placement were made or excused; and it does not establish that I was served or notified as Minnesota law and court rule require.

B. Alternative Relief

If the Court does not dismiss the petition, I respectfully request that the Court:

Stay all further proceedings pending the Department's compliance with the notice, service, and reasonable-efforts requirements described above;

Vacate the existing emergency findings, to the extent they were entered without the individualized findings required by Minn. Stat. § 260C.178, subd. 1(e)–(f);

Require proper personal service of the petition and all supporting documents consistent with Minn. R. Juv. Prot. P. 44.02;

Order complete discovery, including the petition, affidavits, case notes, and laboratory records referenced above;

Order the immediate preservation of all evidence identified in this motion, including body-worn camera footage, squad and dash-camera video, DHS notes, emails and text messages, laboratory documents and chain-of-custody records, dispatch logs, and recordings of all hearings held to date;

Require the Department to state, on the record, whether reasonable efforts to prevent placement were made and, if not, the specific statutory basis on which such efforts were excused;

Enter the written findings requested in Part XI above; and

Grant such further relief as the Court deems just and appropriate.

C. Required Written Findings

In any event — whether the Court grants dismissal, a stay, or other alternative relief — I request written findings of fact and conclusions of law addressing each of the questions identified in Part XI above, consistent with the individualized-findings requirement of Minn. Stat. § 260C.178, subd. 1(e)–(f).

RESERVATION OF RIGHTS

This Supplemental Motion preserves, and does not waive, any argument raised in the Prior Motion, including all claims arising under the Due Process Clause of the Fourteenth Amendment. Nothing in this Supplemental Motion waives any claim I may have under federal law, Minnesota law, or any future civil remedy, including but not limited to claims under 42 U.S.C. § 1983. I am not asking this Court to adjudicate those claims today. I ask only that my objections, both constitutional and statutory, be preserved on the record.

CONCLUSION

This Supplemental Motion is not an attack on the Court, and it does not ask the Court to disregard the record. It asks the Court to apply Minnesota's own statutory framework — the same framework that governs every CHIPS case in this state — to the undisputed sequence of the Department's actions in this one. If the Department's conduct satisfies that framework, the record should show it. If it does not, Minnesota law requires an appropriate remedy, independent of and in addition to the federal constitutional relief requested in the Prior Motion.

Respectfully submitted,

James Chapman

Pro Se — Father

STATE AUTHORITIES RELIED UPON · Minn. Stat. § 260C.001, subd. 2 · Minn. Stat. § 260C.151 · Minn. Stat. § 260C.152 · Minn. Stat. § 260C.175, subd. 1 · Minn. Stat. § 260C.178, subd. 1 · Minn. Stat. § 260.012 · Minn. R. Juv. Prot. P. 39–42 · Minn. R. Juv. Prot. P. 44.02 · 42 U.S.C. § 1983